

SENATE No. 627

The Commonwealth of Massachusetts

PRESENTED BY:

Jason M. Lewis

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the use of glyphosate on public lands.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	
<i>Adam J. Scanlon</i>	<i>14th Bristol</i>	<i>3/4/2025</i>

SENATE No. 627

By Mr. Lewis, a petition (accompanied by bill, Senate, No. 627) of Jason M. Lewis and Adam J. Scanlon for legislation relative to the use of glyphosate on public lands. Environment and Natural Resources.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 517 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the use of glyphosate on public lands.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 2 of chapter 132B of the General Laws is hereby amended by
2 adding the following definitions:-

3 “Glyphosate” or “glyphosate herbicides” includes all herbicides that contain glyphosate
4 as one of the active ingredients and tank mixes of herbicides containing glyphosate as one of the
5 active ingredients.”

6 “Public lands” for the purpose of this bill shall mean state parks, playgrounds, school
7 buildings, highway medians owned and maintained by the Commonwealth, and buildings owned
8 and operated by the State.

SECTION 2. Chapter 132B of the General Laws is hereby amended by adding the following section:-

Section 17. No person shall:

(1) Use any pesticide in a manner inconsistent with its label;

(2) Use, store, transport, or discard any pesticide or pesticide container in any manner which would have unreasonable adverse effects on the environment or public health;

(3) Use or apply restricted use pesticides unless the person is a certified pesticide applicator or under the direct supervision of a certified pesticide applicator with a valid certificate issued; provided that it shall be prohibited to use or apply a restricted use pesticide for structural pest control uses for a fee or trading of services, unless the user or applicator is a pest control operator or is employed by a pest control operator licensed under chapter 460J;

(4) Use or apply pesticides in any manner that has been suspended, canceled, or restricted;

(5) Falsify any record or report required to be made or maintained by rules adopted pursuant to this chapter;

(6) Fill with water, through a hose, pipe, or other similar transmission system, any tank, implement, apparatus, or equipment used to disperse pesticides, unless the tank, implement, apparatus, equipment, hose, pipe, or other similar transmission system is equipped with an air gap or a reduced-pressure principle backflow device;

(7) After December 31, 2026, no person shall apply any glyphosate herbicide, on any public lands owned or maintained by the Commonwealth without a:

30 (A) License issued by the State or any agency of the federal government to conduct
31 glyphosate research; or

32 (B) Permit issued by the State to apply any glyphosate herbicide because:

33 (i) The situation poses an immediate threat to human health and the environment; and

34 (ii) There is no viable alternative to the use of the proposed glyphosate herbicide."

35 SECTION 3. The department of food and agriculture shall adopt regulations within 1
36 year after the effective date of this act.